

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

ANNELOES MOOK, *Claimant*

v.

TRANSPARENT LOGISTICS LLC DBA TRANSPARENT
INTERNATIONAL, *Respondent*.

DOCKET NO. 2063(I)

Served: September 4, 2026

ORDER OF: Jamie L. MENDELSON, *Small Claims Officer*.

INITIAL DECISION¹

I. INTRODUCTION

This proceeding arises from a small claims complaint (“Claim”), filed by Anneloes Mook (“Claimant”) against Transparent Logistics LLC, doing business as Transparent International (“Respondent”), before the Federal Maritime Commission (“FMC” or “Commission”). Claimant paid Respondent, an ocean transportation intermediary, for an international shipment of Claimant’s household goods from Fort Collins, Colorado, to Zoetermeer, Netherlands. After Claimant’s household goods were picked up in Colorado, Respondent never shipped the household goods onward to The Netherlands. Instead, Respondent abandoned Claimant’s household goods in storage with a third party in California, while continuously misleading Claimant with assurances that the shipment was in transit with the carrier. Respondent failed to pay the third-party storage fees, and the third-party will not release the household goods without payment of the accrued storage fees. Claimant alleges that Respondent has violated section 41102(c) of the Shipping Act, 46 U.S.C. § 41102(c), and seeks reparations for the amount paid to Respondent, the replacement value of the household goods, and costs in pursuing the Claim. Respondent has failed to respond to the Claim or otherwise appear in this proceeding. As explained more fully below, a decision on default is issued in this case and Claimant is awarded reparations in the amount of \$5,790.35, plus interest.

II. PROCEDURAL HISTORY

On May 27, 2026, the Office of the Secretary (“OS”) of the FMC received the Claim for informal adjudication. On June 11, 2026, the Secretary of the FMC issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), and sent the Notice, together with a copy

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

of the Claim, by FedEx to Respondent's address on file for service of process with the Secretary of State of New York, where Respondent is registered as a limited liability company.² The Notice advised Respondent that it was required to file a response to the Claim by July 6, 2026, and indicate whether it consents to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission's Rules of Practice and Procedure (46 C.F.R. § 502.301-305) ("Rules"). FedEx successfully delivered the Notice and Claim on June 12, 2026, as evidenced by the FedEx proof of delivery for tracking number 872969540808.

Respondent did not file a response and therefore did not refuse to consent to the informal procedures. On July 22, 2026, the Chief Administrative Law Judge assigned this proceeding to the undersigned Small Claims Officer ("SCO") for adjudication under the informal procedures for small claims.

On July 24, 2026, an Order for Respondent to Show Cause ("OSC") was issued, requiring Respondent to show cause by July 31, 2026, why a default judgment should not be entered against it for failing to file a response to the Claim. The OSC warned Respondent that a failure to respond could cause Respondent to be deemed in default and reparations to be awarded to Claimant. The OSC was successfully delivered to Respondent's address on July 27, 2026, as evidenced by FedEx proof of delivery for tracking number 874840598984. Respondent did not respond to the OSC.

On August 3, 2026, a Request for Information ("RFI") was issued to Claimant. Claimant submitted a response to the RFI, along with supporting documentation, on August 4, 2026. ("C. RFI Resp.").

III. PRELIMINARY ISSUES

A. Jurisdiction

The Shipping Act provides that a "person may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part." 46 U.S.C. § 41301(a). Pursuant to this provision, the Commission has exclusive jurisdiction over a complaint alleging that a respondent committed an act prohibited by the Shipping Act. *See Anchor Shipping Co. v. Aliança Navegação E Logística Ltda.*, Dkt. No. 02-04, 30 S.R.R. 991, 2006 WL 2007808, at *11 (FMC May 10, 2006); *see also Cargo One, Inc. v. COSCO Container Lines Co. Ltd.*, Dkt. No. 99-24, 28 S.R.R. 1635, 1645, 2000 WL 1648961, at *15 (FMC Oct. 31, 2000). Here, the Commission has jurisdiction because the Claim alleges a violation of section 41102(c) of the Shipping Act.

It appears that Respondent may have ceased its business operations. Respondent stopped communicating with Claimant, no longer maintains its website,³ had its FMC ocean

² <https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026).

³ The moving estimate and shipping invoices issued by Respondent include Respondent's website <https://www.movingtransparent.com>. (Claim at Exs. 1, 2). The website is no longer active and displays the message "Site Currently Unavailable." <https://www.movingtransparent.com> (last visited Aug 25, 2026).

transportation intermediary license revoked on October 19, 2025, for failure to maintain a bond,⁴ and has failed to respond in this proceeding. Respondent is a registered limited liability company in the State of New York under the entity name Transparent Logistics LLC, with an assumed name of Transparent International.⁵ The State of New York Division of Corporations official website shows that Respondent last filed a Biennial Statement on September 19, 2025, and reflects a current entity status of “active.”⁶ Thus, even if Respondent has ceased business operations, it does not appear that Respondent has legally dissolved. Pursuant to New York Business Corporation Law § 1006, even if Respondent legally dissolves, it “may ... be sued in all courts and participate in actions and proceedings, whether judicial, administrative, arbitral or otherwise, in its corporate name, and process may be served by or upon it” and the “dissolution of a corporation shall not affect any remedy available to or against such corporation, its directors, officers or shareholders for any right or claim existing or any liability incurred before such dissolution.” N.Y. Bus. Corp. Law § 1006(a)(4) and (b).

B. Default

Respondent has failed to respond in this proceeding by failing to file a response to the Claim and failing to respond to the OSC. “Under such circumstances, it is customary for the Commission as well as courts to find that a defaulting respondent has admitted the well-pled allegations both as to the specific violations of law alleged and as to the specific money damages alleged.” *Smart Garments v. Worldlink Logix Servs.*, Dkt. No. 10-11, 2011 WL 7144015 (ALJ Oct. 31, 2011) (citations omitted), *aff’d* 2013 WL 9808693 (FMC Sep. 12, 2023). “The presiding officer may issue a default judgment, a cease and desist order, or other just ruling against a party that fails to respond to a properly served order or pleading.” *Smart Garments* 2013 WL 9808693 (citations omitted).⁷

Here, Respondent was properly served the Claim at its address for service of process on file with the New York Secretary of State.⁸ Despite being properly served, Respondent did not respond to the Claim, nor did it respond to the OSC. By failing to contest the allegations against it, the allegations are deemed admitted.

⁴ <https://www.fmc.gov/wp-content/uploads/2025/12/2025.10-October-OTI-License-Revocations-and-Surrenders.pdf> (last visited Aug. 25, 2026).

⁵ See <https://apps.dos.ny.gov/publicInquiry/AssumedNameHistory> (last visited Aug. 25, 2026).

⁶ See <https://apps.dos.ny.gov/publicInquiry/FilingHistory> (last visited Aug. 25, 2026).

⁷ Although not directly applicable to the informal procedures in small claims proceedings, Commission Rule 65 provides that a party to a proceeding may be deemed to be in default if that party fails to answer or otherwise to defend the proceeding. 46 C.F.R. § 502.65(a)(2). When a party is found to be in default, the presiding officer may issue a decision on default upon consideration of the record, including the complaint. *Id.* § 502.65(b). Decisions on default have also been issued in small claims proceedings. See, e.g., *Fenton v. Rocky Mountain Overseas*, Dkt. No. 1965(I) (SCO Feb. 17, 2021), *admin. final* Mar. 22, 2021.

⁸ See <https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026).

IV. FINDINGS OF FACT

A. Parties

1. Claimant Anneloes Mook is an individual currently residing in Zoetermeer, Netherlands. (Claim at ¶ I).
2. Respondent Transparent Logistics LLC dba Transparent International is a limited liability corporation registered in the State of New York with an active entity status. (Claim at ¶ II; <https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026)). Respondent's registered entity name is Transparent Logistics LLC, with an assumed name of Transparent International. (<https://apps.dos.ny.gov/publicInquiry/AssumedNameHistory> (last visited Aug. 25, 2026)).
3. Respondent held itself out as a company arranging international ocean transportation of household goods from the United States to foreign destinations. (Claim at ¶ III).
4. Respondent's web address is www.movingtransparent.com. (Claim at Exs. 1, 2). Respondent's website is no longer active and displays the message "Site Currently Unavailable." (www.movingtransparent.com (last visited Aug. 25, 2026)).
5. Respondent was an FMC licensed ocean transportation intermediary until its license was revoked on October 19, 2025, for failure to maintain a bond. (<https://www.fmc.gov/wp-content/uploads/2025/12/2025.10-October-OTI-License-Revocations-and-Surrenders.pdf>).

B. Shipping Agreement

6. On June 23, 2025, Respondent provided Claimant an "International Moving Estimate" for a "Professional Door to Door Move" of household goods, to be shipped by "Sea," from Fort Collins, Colorado to Zoetermeer, Netherlands. (Claim at Ex. 1). The total estimate amount was \$5,115.00, excluding cargo insurance. (*Id.*). The estimate included Respondents "OTI/NVOCC" registration number "026891N." (*Id.*).
7. On June 24, 2025, Respondent issued an invoice to Claimant billing \$5,115.00 for "International Moving Services." (Claim at Ex. 2). The invoice reflected payment received for a deposit in the amount of \$511.50. (*Id.*). The invoice also included Respondent's "OTI-NVOCC" number "026891N." (*Id.*).
8. Between July 10, 2025, and July 13, 2025, Claimant made three additional payments to Respondent totaling \$4,603.50. (C. RFI Resp. at Ex. 7). The deposit and additional payments totaled \$5,115.00 paid to Respondent. (*Id.*).
9. Claimant also paid Respondent \$175.35 for cargo insurance. (C. RFI Resp. at Ex. 7). To obtain the cargo insurance, Claimant submitted an inventory of the household goods which reflected a declared value of \$5,010. (Claim at Ex. 9).

10. Claimant's household goods were picked up in Colorado on July 15, 2025, and transported to a third-party's warehouse in California for onward shipment. (Claim at Ex. 6, p. 38).⁹ Respondent represented to Claimant that the expected delivery timeframe was approximately 8-12 weeks. (*Id.*).

C. Respondent's Failure to Ship the Household Goods

11. Beginning on October 8, 2025—approximately three months since Respondent picked up Claimant's household goods—Claimant repeatedly emailed Respondent requesting an update on the anticipated arrival of the shipment. (Claim at Ex. 4).
12. Between October 9, 2025, and January 22, 2026, Respondent repeatedly told Claimant that the household goods were in transit as part of a "groupage (which is consolidated)" shipment. (Claim at Ex. 4, p. 29).
13. Claimant sent emails between January 22, 2026, and February 5, 2026, repeatedly asking for additional details regarding the status of the shipment. (Claim at Ex. 4). Respondent did not respond. (*Id.*).
14. In February 2025, Claimant contacted the third-party warehouse in California and discovered that the household goods had remained all along in the warehouse. (Claim at Ex. 5). Respondent never paid the third-party for the accrued storage fees and never responded to the third party's requests for payment. (*Id.*).
15. By email dated August 3, 2026, the third-party warehouse informed Claimant that the outstanding balance owed through August 31, 2026, was \$1,367.70, with a payment deadline of August 31, 2026. (C. RFI Resp. at Ex. 5). The third-party warehouse also warned Claimant that if payment is not received by August 31, 2026, the household goods will be auctioned off:

Our management team is currently preparing auction notices for **October 2026** for all [Transparent International (TPI)] clients with outstanding balances.

We have been very patient over the past year while trying to resolve these accounts. Many other TPI clients have already paid their balances and released their goods—choosing to work through the bond/insurance claims on their own end—so that our storage and service fees are cleared.

To ensure your items are not included in the upcoming auction, **we must receive full payment by August 31, 2026.**

(*Id.*) (emphasis in original).

⁹ The Claim and attached exhibits are not consistently paginated. The page numbers throughout this decision refer to the PDF file page number.

16. Claimant is aware of “more than 70 similarly situated customers [of Respondent] whose shipments or household goods were delayed, stranded, or otherwise not completed.” (Claim at ¶ III.L).

D. Claimant’s Mitigation Efforts

17. Claimant attempted to resolve the matter directly with Respondent, but the “efforts have not resulted in delivery of the goods, refund, payment, or meaningful resolution.” (Claim at ¶ III.M).
18. Claimant obtained quotes from other international moving companies to ship her household goods from the warehouse in California to her current residence in Zoetermeer, Netherlands. (C. RFI Resp. at Ex. 6). Claimant received quotes from two different moving companies for \$6,580 and \$6,840. (*Id.*). Because the quotes were in excess of the insured value of the household goods, and because Claimant had already paid Respondent in full and incurred costs in replacing essential items, Claimant determined it was “not a financially reasonable option” to have her household goods shipped. (*Id.*).
19. Claimant has purchased replacement items for her household goods in The Netherlands, but did not retain receipts. (C. RFI Resp. at Ex. 7).
20. Claimant filed a claim with the cargo insurance provider. (Claim at ¶ VI; C. RFI Resp. at Ex. 3). The cargo insurance provider has agreed to settle the claim for \$4,510.00 and submitted their “Final Report” on July 27, 2026, to “facilitate payment.” (*Id.*). As of the date of Claimant’s Response to the RFI, on August 4, 2026, Claimant had not yet received the settlement funds. (*Id.*).
21. Claimant also filed a bond claim with Respondent’s surety Hudson Insurance Company (“Hudson”), pursuant to 46 U.S.C. § 40902(b) and 46 C.F.R. § 515.23. (Claim at Ex. 6). On April 28, 2026, the firm representing Hudson issued a letter to Claimant denying the bond claim on the grounds that there is neither a judgement against Respondent nor a settlement. (C. RFI Resp. at Ex. 4). The letter states in relevant part:

The bond was issued pursuant to the Shipping Act of 1984, 46 U.S.C. 40101-41309. The condition of the bond is that the penalty amount is available:

“to pay any judgment or any settlement made pursuant to a claim under 46 CFR 515.23 for damages against the Principal arising from the Principal’s transportation-related activities or order for reparations issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301-41302, 41305-41307(a)) or any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107-41109).”

The Proof of Claim seeks recovery under the surety’s bond. After reviewing your claim and the documents submitted, the surety found that

the condition of the bond has not been met. There is no indication that a judgment against the Principal has been obtained, nor has a settlement been made as to your claim, pursuant to 46 CFR 515.23. Therefore, based on the language of the bond, the surety must respectfully deny your claim.

(*Id.*).

V. ANALYSIS

A. Violation of Section 41102(c)

Section 41102(c) of the Shipping Act states that a “common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). The elements of a section 41102(c) claim are that:

- (1) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (2) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (3) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (4) The practice or regulation is unjust or unreasonable; and
- (5) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

Here, Claimant’s allegations, supported by evidence submitted into the record, establish that Respondent violated section 41102(c). With respect to the first element, Respondent was a licensed ocean transportation intermediary with the FMC at the time Respondent accepted payment for an international shipment of Claimant’s household goods. Moreover, Respondent held itself out as a company arranging international ocean transportation of household goods from the United States to foreign destinations. Accordingly, the first element is met.

With respect to the second element, Respondent’s conduct was not an isolated incident, but rather the continuous manner in which Respondent was conducting business. *See Interpretive Rule, Shipping Act of 1984*, 83 Fed. Reg. 64478, 64479 (Dec. 17, 2018) (a violation requires a showing that “the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business”). To date, the Commission has received at least four other complaints filed against Respondent from different claimants alleging the same pattern of accepting payment for an international shipment of household goods, and then failing to ship or deliver the household goods and ceasing communication. On the same date as the issuance of the Initial

Decision in this matter, Initial Decisions are also being issued in those four separate cases finding that Respondent engaged in the same unreasonable practice.¹⁰

The third element is also met. Respondent's conduct related to the pickup, shipment, and delivery of Claimant's household goods from Colorado to The Netherlands—thus relating to the “receiving, handling, storing, or delivering property.” 46 C.F.R. § 545.4(c).

Respondent's conduct was patently unreasonable, as Respondent accepted payment for an international shipment of Claimant's household goods, but then abandoned the household goods in storage with a third-party, never shipped the household goods, and ceased communicating with Claimant. Accordingly, the fourth element is met.

Finally, the last element is met, as Respondent's conduct proximately caused Claimant to suffer losses—Claimant paid Respondent for a shipment that Respondent never performed, Claimant no longer has possession of the household goods, and Claimant had to purchase replacement items for the household goods.

B. Reparations

The Claim seeks reparations of “approximately \$15,366” comprised of: \$5,115 paid to Respondent; \$10,000 for replacing the household goods; and \$251 for costs associated with pursuing the Claim. (Claim ¶ VI). The Claim, however, clarifies that Claimant “does not seek double recovery” and that “any amount actually recovered from the cargo insurer” should be offset from the damages. (*Id.*). The Claim also clarifies that the third-party warehouse storage costs are not part of the damages sought, as Claimant does not intend to retrieve the household goods because Claimant has already had to purchase replacement items in the intervening time. (*Id.*).

Pursuant to section 41301, a “complainant may seek reparations for an injury to the complainant caused by [a] violation” of the Shipping Act. 46 U.S.C. § 41301(a). “If the complaint was filed within [three years after the claim accrues], the Federal Maritime Commission shall direct the payment of reparations to the complainant for *actual* injury caused by a violation.” *Id.* § 41305(b) (emphasis added). Accordingly, “[r]eparations will only be awarded based on actual damages.” *Color Brands, LLC v. AAF Logistics, Inc.*, Dkt. No. 22-18, 2024 WL 4034609, at *2 (ALJ Aug. 27, 2024), *admin. final* Sep. 27, 2024. “The term ‘actual damages,’ ... means those recoverable from a wrongdoer as compensation for the actual loss or injuries sustained by reason of the wrongdoing.” *California Shipping Line, Inc. v. Yangming Marine Transport Corp.*, Dkt. No. 88-15, 1990 WL 427466, at *23 (FMC Oct. 19, 1990). “That does not require absolute precision but does require evidence sufficient to reasonably infer the actual loss sustained.” *MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, Dkt. No. 16-16, 2022 WL 2209421, at *3 (FMC June 10, 2022). The Commission allows the adjudicator discretion in determining the amount of reparations. *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2026 WL 2427726, at *10 (FMC Aug. 13, 2026). In awarding reparations for actual injury, the Commission considers whether the claimant “has received something it wanted” and avoids an award of reparations that would cause a claimant to

¹⁰ Docket Nos. 2059(I), 2061(I), 2064(I), and 2067(I).

“unfairly receiv[e] a windfall.” *CMI Distribution, Inc. v. Service By Air, Inc.*, Dkt. No. 17-05, 2021 WL 3367603, at *17 (FMC Jul. 26, 2021); *see also TPG Pressure, Inc. v. Omni Logistics LLC*, Dkt No. 22-31, 2024 WL 4226354, at *42 (ALJ Sept. 12, 2024) (calculating a reparations award that “prevent[ed] the shipper from unfairly receiving a windfall”); *Carrier Int’l Corp. v. Waterman Steamship Corp.*, Dkt. No. 85-1, 1985 WL 148944, at *4 (FMC Dec. 30, 1985) (reversing ALJ’s award of reparations because it would “result[] in an unanticipated and unwarranted windfall to Complainant if reparations [were] awarded.”).

Here, Respondent’s violation proximately caused actual injury to Claimant in the form of the \$5,115 Claimant paid to Respondent for the shipment that Respondent never performed, the \$175.35 Claimant paid for cargo insurance, and the replacement value of Claimant’s household goods that Claimant no longer has possession of. While Claimant could theoretically regain possession of the household goods by paying the third-party warehouse at least \$1,367.70 and paying another moving company at least \$6,580 to ship the goods, a total of at least \$7,947.70, Claimant made the reasonable decision to mitigate costs by instead replacing her household goods. Thus, it is reasonable to include the replacement value of the household goods as a measurement of the actual injury caused by Respondent. However, the record does not support Claimant’s request of \$10,000 for the replacement value. The record establishes that, at the time Claimant purchased cargo insurance for the shipment, Claimant submitted an inventory of the household goods which reflected a declared value of \$5,010. (C. RFI Resp. at Ex. 9). Claimant contends that the “declared value reflected a quick, conservative estimate of uses household goods made under time pressure, and does not reflect the cost of replacing these items today, including items not assigned any value at the time (e.g., academic diplomas).” (C. RFI Resp. at Ex. 2). However, the only evidence to support Claimant’s contention that the replacement value is \$10,000 is a chart prepared by Claimant providing broad categories of household goods with a stated “estimated new replacement value,” without any explanation or support for how the estimated new replacement value was calculated. (Claim at Ex. 9). For the replacement items Claimant has already purchased, Claimant did not retain receipts to document the cost. (C. RFI Resp. at Ex. 7). While it is understandable that the actual replacement cost may be more than the declared value Claimant estimated when purchasing the cargo insurance, there must be “evidence sufficient to reasonably infer the actual loss sustained.” *MAVL Capital*, 2022 WL 2209421, at *3. I find there is insufficient evidence to reasonably infer a replacement value of \$10,000, and that the best evidence of the replacement value is the declared value of the goods that Claimant submitted when obtaining cargo insurance. Accordingly, the replacement value will be considered \$5,010.

Claimant also seeks the reasonable costs associated with pursuing the Claim. However, “[t]he Commission is authorized only to award ‘reasonable attorney fees,’ 46 U.S.C. § 41305, a term that does not include ‘costs.’” *Cornell v. Princess Cruise Lines, Ltd.*, Dkt. No. 13-02, 2013 WL 9808684 at *62 (ALJ Jul. 23, 2013) (citing *Global Transporte Oceanico S.A. v. Coler Ocean Independent Lines Co.*, 28 S.R.R. 1162, 1163 n.5 (ALJ 1999)), *rev’d on other grounds*, 2014 WL 5316340 (FMC Aug. 28, 2014). Therefore, the request for costs must be denied.

Finally, “actual injury” includes “the loss of interest at commercial rates compounded from the date of injury.” 46 U.S.C. § 41305(a). It is reasonable to consider the date of injury as the date Complainant paid Respondent for the shipment. The record reflects that Claimant paid Respondent a deposit and a series of three additional payments between July 10, 2025, and July

13, 2025. As absolute precision is not required, I find a reasonable date of injury to be July 10, 2025. Accordingly, July 10, 2025, shall be considered the date of injury for purposes of calculating the interest due.

Consequently, the actual injury Claimant suffered is the \$5,115 paid to Respondent, plus the \$175.35 Claimant paid for cargo insurance, plus the \$5,010 replacement value of the goods, minus the \$4,510.00 Claimant will receive in settlement of the cargo insurance claim, for a total of \$5,790.35 plus interest calculated from July 10, 2025.

VI. CONCLUSION

It is hereby **ORDERED** by default that Respondent violated 46 U.S.C. § 41102(c). It is

FURTHER ORDERED that Respondent must pay reparations in the amount of \$5,790.35, plus interest calculated from July 10, 2025.

SO ORDERED

Jamie L.
Mendelson -S-5

Digitally signed by
Jamie L. Mendelson

Jamie L. Mendelson
Small Claims Officer